

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Eric Rigie	Team: Squad #03	CCRB Case #: 201705110	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 06/17/2017 3:30 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 12/17/2018	Precinct: 120		
Date/Time CV Reported Thu, 06/22/2017 11:55 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Thu, 06/22/2017 11:55 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Matthew Kreisman	17093	957750	120 PCT
2. SGT Louis Latorre	00803	943454	120 PCT
3. POM Timothy Chi	29493	939997	120 PCT
4. POF Vanessa Sherlock	15588	944655	120 PCT
5. POM Angel Gonzalez	15881	955956	120 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Matthew Kreisman	Abuse: Police Officer Matthew Kreisman threatened to damage § 87(2)(b) property.	A . Substantiated
B . POM Matthew Kreisman	Abuse: Police Officer Matthew Kreisman threatened to arrest § 87(2)(b) and § 87(2)(b)	B . Substantiated
C . POF Vanessa Sherlock	Abuse: Police Officer Vanessa Sherlock entered § 87(2)(b) in Staten Island.	C . Exonerated
D . POM Matthew Kreisman	Abuse: Police Officer Matthew Kreisman entered § 87(2)(b) in Staten Island.	D . Substantiated
E . POM Timothy Chi	Abuse: Police Officer Timothy Chi entered § 87(2)(b) in Staten Island.	E . Substantiated
F . POM Angel Gonzalez	Abuse: Police Officer Angel Gonzalez entered § 87(2)(b) in Staten Island.	F . Substantiated
G . SGT Louis Latorre	Abuse: Sergeant Louis Latorre entered § 87(2)(b) in Staten Island.	G . Exonerated

Case Summary

On June 22, 2017, § 87(2)(b) filed this complaint with the CCRB via the website. On June 19, 2017, § 87(2)(b) filed a duplicate complaint with the NYC City Planning Commission. On the same date, that complaint was referred to IAB via email by Marnie Blit of the Planning Commission. That duplicate case was subsequently received by the CCRB on June 26, 2017 under IAB log# 2017-23759.

On June 17, 2017, § 87(2)(b) was inside the § 87(2)(b) in Staten Island with her § 87(2)(b) son. At approximately 3:30 p.m., PO Mathew Kreisman and PO Timothy Chi, of the 120th Precinct, came to the location to arrest § 87(2)(b) on a complaint from her ex-husband, § 87(2)(b) that she § 87(2)(b). § 87(2)(b) also came to the scene with PO Kreisman and PO Chi. PO Kreisman and PO Chi were met at the door by Resident Manager § 87(2)(b) and Parenting Coach § 87(2)(b). PO Kreisman asked to enter the facility to speak to § 87(2)(b) § 87(2)(b) and § 87(2)(b) informed PO Kreisman that due to confidentiality regulations, they could not confirm nor deny that § 87(2)(b) was inside the facility. § 87(2)(b) and § 87(2)(b) also informed PO Kreisman that he could not enter because their policy was to not allow any males into the facility, but they could allow a female officer in. PO Kreisman allegedly responded by making a statement along the lines of, “Well, I’ll just break down the door and arrest you and you for obstruction” while pointing at § 87(2)(b) and § 87(2)(b) (Allegations A and B). § 87(2)(b) and § 87(2)(b) then closed the front door and called Director § 87(2)(b). While on the phone with § 87(2)(b) § 87(2)(b) and § 87(2)(b) opened the front door again and PO Kreisman repeated his threat to break the door down and arrest § 87(2)(b) and § 87(2)(b) (also Allegations A and B). PO Kreisman called his supervisor, Sgt. Louis Latorre and requested that he and a female officer respond to the scene. Sgt. Latorre called and instructed PO Vanessa Sherlock to respond. PO Sherlock and her partner PO Angel Gonzalez arrived on the scene and knocked on the front door. § 87(2)(b) answered the door while § 87(2)(b) remained in the office. On § 87(2)(b)’s invitation, PO Sherlock entered the facility and went into the office where she spoke to § 87(2)(b) and § 87(2)(b) on the phone (Allegation C). § 87(2)(b) then began to close the door, but PO Kreisman allegedly pushed it open and entered the facility while saying that he could not allow PO Sherlock to be inside by herself (Allegation D). PO Chi and PO Gonzalez then entered the facility behind PO Kreisman and all three officers remained in the foyer area (Allegations E and F). Sgt. Latorre then arrived on scene with an unknown male operator and entered the facility with the permission of § 87(2)(b) (Allegation G). Sgt. Latorre went into the office and explained the situation to § 87(2)(b) over the phone. § 87(2)(b) then brought § 87(2)(b)’s child to PO Sherlock and she escorted the child to § 87(2)(b). § 87(2)(b) then came downstairs and was arrested by PO Kreisman for § 87(2)(b). PO Sherlock and PO Gonzalez then transported § 87(2)(b) to the 120th Precinct stationhouse.

There was no video footage of this incident. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

Mediation, Civil and Criminal Histories

- This case was not suitable for mediation due to § 87(2)(b)'s arrest with no DAT.
- On October 1, 2017, a FOIL request was submitted to the Office of the Comptroller for any Notices of Claim filed by § 87(2)(b) or § 87(2)(b) for this incident and will be added to the case file upon receipt (01 Board Review).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Civilian and Officer CCRB Histories

- This is § 87(2)(b) and § 87(2)(b)'s first CCRB complaint (03 Board Review).
- PO Kreisman has been a member of the NYPD for two years and this is his first CCRB complaint.
- PO Chi has been a member of the NYPD for 11 years and this is his first CCRB complaint.
- PO Sherlock has been a member of the NYPD for 10 years and has been involved with one prior CCRB complaint that involves two allegations and is under active investigation. § 87(2)(g)
[REDACTED]
- PO Gonzalez has been a member of the NYPD for three years and has been involved in three other CCRB complaints involving four allegations. One case involved one allegation and was mediated. A second case involved one allegation and was closed as mediation attempted. A third case involves two allegations and is under active investigation. None of the allegations were substantiated § 87(2)(g) [REDACTED].
- Sgt. Latorre has been a member of the NYPD for 10 years and has been involved with two other CCRB cases involving five allegations. In CCRB 200802601, Sgt. Latorre had a vehicle stop and a vehicle search allegation substantiated. The CCRB recommended charges for these allegations, but the NYPD issued Sgt. Latorre with instructions for the vehicle stop allegation and no disciplinary action for the vehicle search allegation. § 87(2)(g), § 87(4-b) [REDACTED] Sgt. Latorre's second CCRB case involved two allegations, which were truncated. § 87(2)(g) [REDACTED]
[REDACTED]

Potential Issues

- The investigation was not able to identify Sgt. Latorre's operator.

Findings and Recommendations

Allegations Not Pled

- § 87(2)(g) [REDACTED]
[REDACTED]

§ 87(2)(g)

Allegation A –Abuse of Authority: Police Officer Matthew Kreisman threatened to damage Amethyst House’s property.

Allegation B –Abuse of Authority: Police Officer Matthew Kreisman threatened to arrest

§ 87(2)(b) and § 87(2)(b)

§ 87(2)(b) said that when she answered the front door, PO Kreisman told her he was there to arrest § 87(2)(b) for § 87(2)(b). Following § 87(2)(b) procedure, § 87(2)(b) told PO Kreisman that the officers were not allowed in the house and she could not confirm or deny that § 87(2)(b) was there. PO Kreisman told § 87(2)(b) that he was not aware of any rules governing confidentiality. § 87(2)(b) then shut and locked the front door and spoke to § 87(2)(b) § 87(2)(b) and § 87(2)(b) then opened the door and, § 87(2)(b) apologized to PO Kreisman, but said she could not let males into the facility and she could not confirm or deny that § 87(2)(b) was there. PO Kreisman responded by saying, “Well I’ll just break down the door.” PO Kreisman also said that he would arrest § 87(2)(b) and § 87(2)(b) for obstruction of justice. PO Kreisman did not make any other threats of arrest. § 87(2)(g)

§ 87(2)(b) § 87(2)(g) added that PO Kreisman repeated his threats to arrest her and § 87(2)(b) three or four times both outside and inside the facility. § 87(2)(b) also added that she allowed a pizza deliveryman inside during this conversation and PO Kreisman asked why he could come in, but not the officers. § 87(2)(g)

§ 87(2)(b) said that § 87(2)(b) called her on her cell phone and told her that PO Kreisman was at the house threatening arrest. § 87(2)(b) heard § 87(2)(b) speaking to PO Kreisman in the background and instructed her to explain the law to him and that he was not allowed in the house. § 87(2)(b) provided this explanation and § 87(2)(b) heard PO Kreisman reply, “Well I’ll have you arrested for obstruction and I’ll knock the door down.” § 87(2)(b) heard § 87(2)(b) start to cry and asked to speak to PO Kreisman, but he refused to take the phone. § 87(2)(b) told the CCRB that, as a drug treatment facility, § 87(2)(b) fell under federal privacy regulation 42 CFR 2.65 and also HIPAA rules (07 Board Review).

§ 87(2)(b) § 87(2)(g) did not allege that PO Kreisman made any threats of arrest or threatened to break the door down. § 87(2)(g) In a prior phone statement to the CCRB, § 87(2)(b) said that § 87(2)(b) later told her that PO Kreisman threatened to arrest her for obstruction of justice if she did not let him inside (04 and 22 Board Review).

§ 87(2)(b) said that from the sidewalk, he observed PO Kreisman and PO Chi speak to § 87(2)(b) at the front door, but he could not clearly hear their conversation. § 87(2)(b) did not hear PO Kreisman make any threats of arrest or threaten to break down the door. § 87(2)(b) added that he believed PO Kreisman was going to arrest § 87(2)(b)

PO Kreisman said that he and PO Chi went to § 87(2)(b) to arrest § 87(2)(b) on § 87(2)(b)'s complaint that she violated his order of protections against her. PO Kreisman said they did not run § 87(2)(b)'s name for warrants prior to going to the facility and was not aware of any active warrants for her during this incident. PO Kreisman had no specific information that § 87(2)(b) was armed or dangerous during this incident and § 87(2)(b) did not make any statements expressing a safety concern for his son. § 87(2)(b) and § 87(2)(b) answered the door and he told them that he was investigating § 87(2)(b) and asked whether she could come outside or he could come in. § 87(2)(b) replied that the facility was an all-female halfway house and so she could not confirm nor deny that § 87(2)(b) was inside and that no males were allowed in. § 87(2)(b) and § 87(2)(b) shut the door and PO Kreisman knocked again. PO Kreisman asked for and received § 87(2)(b)'s son. § 87(2)(b) and § 87(2)(b) had closed the door again, so PO Kreisman knocked a third time and repeated to § 87(2)(b) that there was an investigation and asked if he could come in or § 87(2)(b) could come out. § 87(2)(b) repeated, "No males in the house." PO Kreisman never told § 87(2)(b) or § 87(2)(b) that they could be arrested if they did not cooperate. PO Kreisman was asked whether he told § 87(2)(b) and § 87(2)(b) that they could be arrested for obstruction. PO Kreisman initially said he told them that they were impeding an investigation. After PO Kreisman's PBA representative repeated the question, PO Kreisman said he did not threaten to arrest § 87(2)(b) or § 87(2)(b) for obstruction or any other charge. § 87(2)(b) and § 87(2)(b) could have been arrested for obstruction of governmental administration (OGA) because they were interfering with an ongoing investigation by not letting him inside, but he restated that he never said that out loud. PO Kreisman did not make any statements about forcing his way in if § 87(2)(b) and § 87(2)(b) did not cooperate and he never said, "Well I'll just break the door down." PO Kreisman and PO Chi never had any conversation about breaching the door. PO Kreisman said that after this conversation, § 87(2)(b) and § 87(2)(b) allowed a male pizza deliveryman into the house in contradiction of their rule (09 Board Review).

PO Chi § 87(2)(g) did not recall whether PO Kreisman made any statements that § 87(2)(b) or § 87(2)(b) could be arrested or that he would break the door down if they did not cooperate. PO Chi did not know whether § 87(2)(b) or § 87(2)(b) could have been arrested for not allowing him or PO Kreisman into the facility, but he did not observe either female engage in any illegal behavior. PO Chi did not make any observations that led him to believe that he and PO Kreisman needed to enter the facility immediately (10 Board Review).

Sgt. Latorre, PO Sherlock, and PO Gonzalez were not present when the allegations were alleged to have occurred (11-13 Board Review).

In the § 87(2)(b) incident report prepared by § 87(2)(b) on June 17, 2017, and submitted to § 87(2)(b) on the same date, § 87(2)(b) reported that while § 87(2)(b) was on the phone and § 87(2)(b) was present, PO Kreisman said he would, "break the door down" and have her and § 87(2)(b) arrested for obstruction of justice (14 Board Review).

Although warrantless entries into a home are presumptively unreasonable, a warrantless search and seizure in a protected area may be lawful under some circumstances pursuant to the emergency doctrine. The exception applies where the police have reasonable grounds to believe there is an emergency at hand and an immediate need for their assistance for the protection of life or property, are not motivated by intent to arrest and seize evidence, and have a reasonable basis, approximating probable cause, to associate the emergency with the area or place to be searched. People v. Rossi, 99 A.D. 3d 947, (2012, N.Y. App. Div.) (15 Board Review).

A person is guilty of obstruction of governmental administration in the second degree when they intentionally obstruct, impair, or pervert the administration of law or other governmental function or prevent or attempt to prevent a public servant from performing an official function by means of intimidation, physical force or interference, or by means of any independently unlawful act New York Penal Law 195.05 (16 Board Review).

Mere words alone do not constitute physical force or interference. In order to trigger criminal liability under 195.05, the interference would have to be, in part at least, physical in nature. Evidence that a person intruded into police activity to frustrate its objectives qualifies as violating the statute. In re. of Davan L., 91 N.Y. 2d 88, (1997) (17 Board Review).

An individual refusing an officer's request to open his door or provide identification was an exercise of his "right to be let alone" and right to refuse to respond to police inquiry. Therefore, his arrest for OGA was not justified. People v. Perez, 851 N.Y.S. 2d 747, 4th Dept. (2008) (18 Board Review).

A person conducting a criminal investigation on a patient must apply to a court to obtain the disclosure of those records and must give the party holding the records adequate notice of the application and an opportunity to be represented by counsel and have a hearing to determine the criteria for the release of any evidence. 42 CFR 2.65 (23 Board Review).

§ 87(2)(g)

[REDACTED]

Therefore, it is recommended that **Allegations A** and **B** be *substantiated*.

Allegation C –Abuse of Authority: Police Officer Vanessa Sherlock entered § 87(2)(b) in Staten Island.

Allegation D –Abuse of Authority: Police Officer Matthew Kreisman entered § 87(2)(b) in Staten Island.

Allegation E –Abuse of Authority: Police Officer Timothy Chi entered § 87(2)(b) in Staten Island.

Allegation F –Abuse of Authority: Police Officer Angel Gonzalez entered § 87(2)(b) in Staten Island.

Allegation G –Abuse of Authority: Sergeant Louis Latorre entered § 87(2)(b) in Staten Island.

§ 87(2)(b) said that PO Kreisman called for PO Sherlock after she explained to him that males were not allowed in the facility. When PO Sherlock arrived, § 87(2)(b) gave § 87(2)(b) permission to allow PO Sherlock inside. PO Sherlock did not know what was going on, but § 87(2)(b) explained the situation. § 87(2)(b) did not witness PO Kreisman enter the facility, but § 87(2)(b) later told her that, despite telling him not to enter, PO Kreisman entered when her back was turned and that PO Gonzalez and PO Chi followed him inside. § 87(2)(b) told § 87(2)(b) that PO Kreisman entered the facility and she asked to speak with him, but PO Kreisman refused. § 87(2)(b) then spoke to PO Sherlock over the phone and asked to speak to their supervisor. Approximately two minutes after PO Kreisman entered the facility, Sgt. Latorre arrived and was given permission to enter by § 87(2)(b) via § 87(2)(b). Sgt. Latorre then entered the office of the facility and spoke to § 87(2)(b) over the phone. § 87(2)(b)

§ 87(2)(b) said she was told by § 87(2)(b) that PO Kreisman and PO Chi agreed to get a female officer to come and speak to § 87(2)(b) over the phone since males were not allowed inside. A short time later, PO Sherlock entered the facility with her and § 87(2)(b)'s consent. § 87(2)(b) then explained the facility's confidentiality rules to PO Sherlock over the phone. § 87(2)(b) then heard a male voice in the background and asked PO Sherlock to give the phone to § 87(2)(b) who explained that PO Kreisman stuck his foot in the doorway and pushed his way in. § 87(2)(b) heard PO Kreisman yell for § 87(2)(b) to get § 87(2)(b) because he was "taking her out." PO Sherlock then came back on the phone and said her supervisor was on his way. After an unknown amount of time, Sgt. Latorre came to the phone and apologized for causing a commotion. § 87(2)(g)

§ 87(2)(b) said in her phone statement that PO Kreisman called Sgt. Latorre to the scene and she explained to him that they could only let a female officer in because it was an all-female facility. Sgt. Latorre then called PO Sherlock to the scene and she entered with the consent of § 87(2)(b) and § 87(2)(b). PO Sherlock was led into the office by § 87(2)(b) and § 87(2)(b) tried to shut the door. Before § 87(2)(b) could shut the door, PO Kreisman stopped her from doing so. § 87(2)(b) asked to be allowed to close the door, but PO Kreisman said he could not let her and had to back up PO Sherlock. Eventually, PO Kreisman, PO Gonzalez, and Sgt. Latorre came inside. In an in-person statement, § 87(2)(b) said that after PO Sherlock was escorted into the office, § 87(2)(b) tried to shut the door, but PO Kreisman

used one of his legs to prevent her from doing so. PO Kreisman said he could not allow PO Sherlock to go inside alone. § 87(2)(b) said no one would hurt PO Sherlock, but PO Kreisman physically pushed the door open forcing § 87(2)(b) to step back and allow him in. PO Chi and PO Gonzalez then followed PO Kreisman inside. § 87(2)(b) said that Sgt. Latorre was inside the office speaking to § 87(2)(b) when this happened (06 and 21 Board Review).

§ 87(2)(b) said that when she came downstairs, she observed PO Sherlock carrying her son out of the facility and asked if she could say goodbye. She then observed PO Kreisman, PO Chi, PO Gonzalez, and Sgt. Latorre inside the foyer. § 87(2)(g)

§ 87(2)(b) said he waited on the sidewalk while PO Kreisman and PO Chi spoke to § 87(2)(b) at the door. PO Kreisman then came back to him and said he was calling a supervisor because § 87(2)(b) refused to let any males into the facility. After approximately 10 or 15 minutes, PO Sherlock and Sgt. Latorre arrived on the scene and were allowed in by § 87(2)(b). PO Kreisman and PO Chi went into the facility behind Sgt. Latorre and escorted § 87(2)(b) outside a minute or two later (08 Board Review).

PO Kreisman said Sgt. Latorre arrived on the scene first followed by PO Sherlock and PO Gonzalez. When PO Sherlock arrived, she knocked on the front door and was then allowed inside by § 87(2)(b) and § 87(2)(b) who then shut the door. The officers could not see PO Sherlock for approximately a minute to a minute and a half. PO Kreisman was asked what officers were trained to do in a situation where one officer became separated from the rest. PO Kreisman responded that they were trained to go over the radio. PO Sherlock never made any statements through the door or over the radio that she needed backup. No officers attempted to contact PO Sherlock during that minute span where she was inside beyond knocking on the door. It was never explained to § 87(2)(b) or § 87(2)(b) that if PO Sherlock went inside, other officers would have to go inside with her. PO Kreisman knocked on the door again, which was answered by § 87(2)(b) or § 87(2)(b) and he and Sgt. Latorre entered the foyer because they feared for the safety of PO Sherlock. PO Chi entered behind PO Kreisman, but PO Kreisman did not know whether PO Gonzalez ever entered. PO Kreisman said he would not have gone inside if the door was still open and he could see PO Sherlock. PO Kreisman first said he told § 87(2)(b) and § 87(2)(b) that they were coming in because they could not see PO Sherlock and feared for her safety. PO Kreisman later said that no such statement was made, but that Sgt. Latorre entered the facility and he entered behind the sergeant. When pressed to clarify, PO Kreisman said that he heard an officer saying they were coming in, but did not remember who made that statement. PO Kreisman was asked whether Sgt. Latorre ever said there were exigent circumstances to enter the facility. PO Kreisman replied that Sgt. Latorre said that PO Sherlock was inside. PO Kreisman was asked whether Sgt. Latorre ever said specifically that PO Sherlock being inside the facility alone created an exigent circumstance. PO Kreisman initially said “yes.” PO Kreisman was then asked for Sgt. Latorre’s specific words, but he said he did not remember. Sgt. Latorre never ordered PO Kreisman to enter the facility and there was no reason for entering beyond the safety of PO Sherlock. There was no indication that PO Sherlock was not safe beyond the fact that the officers could not see her. Neither § 87(2)(b) nor § 87(2)(b) tried to hold the door closed when the officers entered and neither PO Kreisman nor Sgt. Latorre forcefully pushed the door open. Neither § 87(2)(b) nor § 87(2)(b) told the officers to leave once they were inside. No staff members objected to the other officers entering the facility (09 Board Review).

Sgt. Latorre said that PO Sherlock and PO Gonzalez arrived at the facility first and that when he arrived, PO Kreisman and PO Chi said that the staff let PO Sherlock into the facility alone. PO Sherlock never requested that other officers enter the facility as backup over the radio or through the door. Aside from PO Sherlock being in the facility, Sgt. Latorre made no observations that led him to believe that there were exigent circumstances to enter. Because Sgt. Latorre could not see PO Sherlock from outside the facility, he knocked on the door, which was answered by § 87(2)(b) or § 87(2)(b). Sgt. Latorre told § 87(2)(b) or § 87(2)(b) that he was not comfortable with one of his officers being inside the residence alone and he then entered the facility. Sgt. Latorre later said § 87(2)(b) or § 87(2)(b) gave him permission to enter, but he did not recall whether this permission was just for him or also other officers. PO Kreisman and PO Chi entered the facility behind Sgt. Latorre, but he did not recall whether PO Kreisman and PO Chi entered on their own or whether he instructed them to enter. After entering the facility, Sgt. Latorre went into an office and spoke to § 87(2)(b) over the phone, who explained that the facility was protected under a confidentiality regulation which is why they did not let the officers inside initially. Sgt. Latorre explained to § 87(2)(b) that the officers had not been aware of these rules or regulations when they came. No staff members had any complaints against PO Kreisman (11 Board Review).

PO Chi said that PO Sherlock arrived with PO Gonzalez before Sgt. Latorre and that the officers knocked on the door, which was answered by § 87(2)(b). § 87(2)(b) consented to PO Sherlock entering and when she entered, PO Kreisman entered behind her and stepped just into the foyer. PO Chi then entered the open doorway behind PO Kreisman so that he was half in and half out of the facility. PO Chi did not remember whether he or PO Kreisman pushed the door open to enter the facility and he did not remember whether anyone was standing behind the door or attempted to hold the door closed. The officers entered at this point so they could see PO Sherlock for her safety in case § 87(2)(b) came downstairs and there was some sort of struggle. PO Chi did not remember any civilians complaining that officers were inside the facility. PO Chi initially said that you could not see inside the facility when standing outside the facility and that he did not remember if the door was glass or solid. PO Chi later said that he could see PO Sherlock inside the office via the window while he was still outside, but could not see her when she was in the hallway outside the office. PO Chi or PO Kreisman explained to § 87(2)(b) and § 87(2)(b) that if PO Sherlock went in, he and PO Kreisman also had to enter for PO Sherlock's safety. PO Chi did not remember whether PO Sherlock requested that other officers follow her into the facility and did not recall any staff requesting that he or PO Kreisman go outside. § 87(2)(b) then requested that a supervisor come to the scene and PO Chi or PO Kreisman called Sgt. Latorre. When Sgt. Latorre arrived, he spoke to § 87(2)(b) at the door, who then consented to him entering. PO Chi did not remember the details of this conversation, but remembered Sgt. Latorre entering the facility and then speaking to § 87(2)(b). Sgt. Latorre gave PO Chi no instructions about whether or not to enter the facility (10 Board Review).

PO Sherlock § 87(2)(g) said that when she arrived, § 87(2)(b) was looking out of the open door and waved PO Sherlock inside. PO Sherlock entered the facility and went into the office where § 87(2)(b) was on speaker phone. The office door was closed behind PO Sherlock. PO Gonzalez followed PO Sherlock into the facility, but she did not request that. PO Sherlock did not hear § 87(2)(b) make any statements that PO Gonzalez could not come in. § 87(2)(b) explained over the phone that the facility did not allow males inside. PO Gonzalez just stood in the vestibule. While § 87(2)(b) was speaking to PO Sherlock, Sgt. Latorre came into the office and also spoke to § 87(2)(b).

over the phone. PO Kreisman and PO Chi also entered the facility with Sgt. Latorre and no one inside the facility objected to PO Kreisman or PO Chi being inside (12 Board Review).

PO Gonzalez § 87(2)(g) said that when § 87(2)(b) waved PO Sherlock inside, he told § 87(2)(b) that he did not feel comfortable with his partner inside alone. § 87(2)(b) said that was fine and waved PO Gonzalez inside as well. § 87(2)(b) explained to PO Gonzalez that men were not allowed into the facility because it was a female only facility, but said he could wait in the corridor with her. PO Gonzalez could see PO Sherlock in the office speaking to staff members, but could not hear the conversation. PO Kreisman and PO Chi entered the facility behind PO Gonzalez and also stayed in the corridor. PO Gonzalez did not recall whether § 87(2)(b) or any staff member made any statements to PO Kreisman and PO Chi when they entered. PO Gonzalez waited in the building for five to 10 minutes before Sgt. Latorre arrived. PO Kreisman briefly exited to speak to Sgt. Latorre and he and Sgt. Latorre then entered the facility and Sgt. Latorre went into the office. PO Gonzalez did not hear any staff members object to Sgt. Latorre entering (13 Board Review).

The § 87(2)(b) Incident report prepared by § 87(2)(b) on June 17, 2017, and submitted to § 87(2)(b) on the same date said that PO Sherlock arrived and was invited into the facility to be briefed over the phone by § 87(2)(b). PO Kreisman then put his foot in the door to stop it from closing and stated he needed to back up PO Sherlock. § 87(2)(b) stood in the doorway refusing to let any other officers enter the facility. Shortly afterward, Sgt. Latorre arrived at the residence and was invited inside to speak to § 87(2)(b) over the phone. As this conversation was taking place, PO Kreisman entered the facility without consent or a warrant (14 Board Review).

Although warrantless entries into a home are presumptively unreasonable, a warrantless search and seizure in a protected area may be lawful under some circumstances pursuant to the emergency doctrine. The exception applies where the police have reasonable grounds to believe there is an emergency at hand and an immediate need for their assistance for the protection of life or property, are not motivated by intent to arrest and seize evidence, and have a reasonable basis, approximating probable cause, to associate the emergency with the area or place to be searched. An officer's uncertainty that children were secure and out of danger can contribute to his belief that there was an ongoing emergency. People v. Rossi, 99 A.D. 3d 947, (2012, N.Y. App. Div.) (15 Board Review).

Once a search exceeds the objectively reasonable scope of a voluntary consent, a more specific request or grant of permission is needed. People v. Gomez, 24 A.D. 3d 276 (2005) (19 Board Review).

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegations C** and **G** be *exonerated* and that **Allegations D, E, and F** be *substantiated*.

Squad: 3

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date